DEPARTMENT OF HEALTH & HUMAN SERVICES

Office of the Secretary

Assistant Secretary for Administration
HHS EEO Office
Washington, DC 20201

LETTER OF DISMISSAL
Transmittal via E-mail: kdturnage@protonmail.com

March 4, 2026

Mr. Kevin D. Turnage
1003 E. Pinto Ct.
Gilbert, AZ 85296

Re: Kevin D. Turnage v. HHS
Agency File No.: HHS-IHS-0614-2023
Date Filed Formal: March 7, 2024
Amendment Date: February 16, 2026

Dear Mr. Turnage:

This letter serves to dismiss the subject complaint of discrimination, filed on March 7, 2024, and amended on February 16, 2026,[1] against the U.S. Department of Health and Human Services (HHS), Indian Health Service (IHS), Phoenix Indian Medical Center (PIMC). This letter also provides you with written notice of your rights and the time limits for exercising those rights. Please refer to the agency file number listed above in all correspondence related to this matter.

Upon review of the formal complaint and additional documentation, the following claims have been identified:

Claim 1: Whether the Agency discriminated against Complainant on the basis of retaliation for (prior EEO activity),[2] when the following alleged incidents occurred:

a. On March 21, 2023, management removed you from your supervisory duties.

b. On March 21, 2023, management placed you on administrative leave and blocked your access to government systems.

c. On June 27, 2025, senior management placed you on administrative leave.

Claim 2: Whether the Agency subjected Complainant to sexual and non-sexual harassment on the basis of retaliation for (prior EEO activity),[3] when the following alleged incidents occurred:

[1] Complainant submitted claim 1c. and 2h. via request for clarification on February 16, 2026.
[2] Prior EEO cases HHS-IHS-0456-2021, and HHS-IHS-0296-2023.
[3] Prior EEO cases HHS-IHS-0456-2021, and HHS-IHS-0296-2023.

a. In September 2022, a female colleague hugged you inappropriately after you indicated such physical contact was unwelcome and management failed to take action.

b. From November 2022 through March 2023, a female colleague repeatedly stated, "I don't regret that hug, "and continued referencing the incident despite your objection.

c. On March 2-3, 2023, a female colleague warned you that if you filed a grievance regarding your performance appraisal, she would assign you a lower rating of "2 – Partially Achieved Expectations."

d. On March 6, 2023, you reported sexual harassment by a female colleague and no corrective action or investigation was conducted.

e. On March 21, 2023, management removed you from your supervisory duties.

f. On March 21, 2023, management placed you on administrative leave and blocked your access to government systems.

g. On March 21, 2023, you were escorted by security to retrieve your belongings, required to surrender your laptop, and directed to leave the facility.

h. On June 27, 2025, a senior management official placed you on administrative leave without confirming your preference.

After a thorough review of your complaint, the agency is dismissing your claims from further processing, and they will not be investigated.

Dismissal Analysis

Untimely Counselor Contact

29 C.F.R. § 1614.107(a)(2) provides that an agency shall dismiss a complaint that fails to comply with the applicable time limits for requesting EEO counseling. 29 C.F.R. § 1614.105(a)(1) requires that complaints of discrimination be brought to the attention of the EEO Counselor within forty-five days of the date of the matter alleged to be discriminatory or, in the case of a personnel action, within forty-five days of the effective date of the action.

We dismiss Claim 1 a. and b. and Claim 2 a.- g. on the basis that you failed to timely contact the EEO counselor within forty-five days of the matter you alleged was discriminatory. You alleged claims 1a. and b. and claim 2c. occurred in or around March 2023, claim 2a. and b. occurred in or around September 2022. However, you did not notify the EEO office within the required 45-calendar day period. You failed to contact the EEO counselor until **September 12, 2023**, regarding these allegations. The 45-day

period to report claims timely is **October 27, 2023.** Our review of the record presented no persuasive evidence or arguments that warrant an extension of the time limit for initiating EEO counselor contact.[4] In addition, you were aware of the 45-day time limit because on September 7, 2021, you filed a previous EEO complaint# HHS-IHS-0456-2021.

States the Same Claim

29 C.F.R § 1614(107)(a)(1) provides that an agency is required to dismiss complaints that are identical to complaints pending before the agency or the Equal Employment Opportunity Commission (EEOC), or that have already been decided by the agency or the Commission.

The issues contained in Claims 1c. and 2h. are identical to, arise from, and elaborate on a claim you previously raised in an informal complaint you filed against the Agency: Agency File No. HHS-IHS-0500-2025. You received a notice of right to file a formal complaint on September 5, 2025, regarding this same claim, you decided to not proceed with the formal complaint therefore you have lost the right to allege the same claims in this complaint. Therefore, we dismiss Claims 1c. and 2h. under **29 CFR 1614.107 (a)(1)** and will not be investigated.

The regulatory basis for these decisions is found at Title 29, Code of Federal Regulations, Section 1614.107(a)(1).

Statement of Appeal Rights

If you are dissatisfied with this final decision, within thirty (30) calendar days of receipt of this correspondence, you have the right to appeal to:

Equal Employment Opportunity Commission (EEOC)
Office of Federal Operations (OFO)
P.O. Box 77960
Washington, DC 20013

To file your appeal, you should use EEOC Form 573, Notice of Appeal/Petition. This form is located at Appendix K to the EEOC's Management Directive 110 and can be found on the EEOC's website at https://www.eeoc.gov/federal-sector/management-directive/notice-appealpetition-complainant. Electronic mail submission through the EEOC's Public Portal at https://publicportal.eeoc.gov/Portal/Login.aspx is the preferred method for submission at this time.

If there is an attorney of record, the thirty (30) calendar daytime frame within which to appeal shall be calculated from the date of receipt of this correspondence by the attorney.

[4] EEOC regulations provide the agency, or the Commission shall extend the time limits when the individual shows he was not notified of the time limits and was not otherwise aware of them, he did not know and reasonably should not have known that the discriminatory matter or personnel action occurred. That despite due diligence circumstances beyond his control prevented the individual from contacting the counselor within the time limits, or for other reasons considered sufficiency by the agency or the Commission. EEOC Regulation 29 C.F.R. § 1614.105(a)(2)

An appeal shall be deemed filed on the day it is received via the Public Portal, or if mailed, postmarked, or in the absence of a postmark, on the date it is received by the EEOC. If you do not file an appeal within the time limits indicated above, the appeal will be untimely and may be dismissed by the EEOC.

Any statement or brief you file in support of the appeal must be submitted to the OFO within thirty (30) calendar days of filing the Notice of Appeal/Petition. At the same time, you must furnish a copy of the appeal, or any statement or brief submitted to the OFO in support of the appeal, to the EEO Director. In or attached to the appeal (or other submission) to the OFO, you must certify the date and method by which service was made on the agency.

Within thirty (30) calendar days of receipt of the notice of appeal, the agency must submit the complaint file to the OFO. The agency has thirty (30) calendar days from receipt of the statement or brief in support of the appeal, or sixty (60) calendar days if no statement or brief has been filed, to submit a brief in opposition to the appeal to the OFO, and simultaneously serve a copy of the opposition brief upon you.

You have the right to file a civil action in an appropriate United States District Court. If you choose to file a civil action, you may do so:

- within ninety (90) calendar days of receipt of this final agency decision if no appeal has been filed;
- within ninety (90) calendar days after receipt of the EEOC's final decision on appeal;
- within one hundred eighty (180) calendar days from the date of filing a complaint if no appeal has been filed and no final action has been issued; or
- within one hundred eighty (180) calendar days from the date of filing an appeal with the EEOC if there has been no final decision by the EEOC.

If you elect to file a civil action, you must name as the defendant, **Robert F. Kennedy Jr., Secretary of the Department of Health and Human Services.**

If you decide to file a civil action under Title VII or the Rehabilitation Act, and if you do not have or cannot afford the services of an attorney, you may request that the Court appoint an attorney to represent you and that the Court permit you to file the action without payment of fees, costs, or other security. The granting or denial of the request is within the sole discretion of the Court. Filing a request for an attorney does not extend your time in which to file a civil action. Both the request and the civil action must be filed within ninety (90) calendar days of the date you receive the final decision from the agency or the EEOC.

If you engage the services of a licensed attorney to represent you in this matter, or there is a change in the attorney's address or telephone number, or your representation status changes, you must notify the Agency in writing immediately.

If you have any questions regarding the above, please contact Daisy Christopher, Director, Formal Complaints, at Daisy.Christopher@hhs.gov or (202) 240-3149.

Sincerely,

DAISY M. CHRISTOPHER -S

Digitally signed by DAISY M. CHRISTOPHER -S
Date: 2026.03.06 10:30:11 -06'00'

Daisy Christopher
Director Formal Complaints Team
HHS EEO Office
U.S. Department of Health and Human Services